

26STCV05889 26STCV05889

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Case Number: 26STCV05889 Hearing Date: July 21, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

LEWIS BRIANS,

Plaintiff,

vs.

THE ESTATE OF FRANK ANTHONY SINATRA,
DECEASED, ET AL.

Defendant.

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CASE NO.: 26STCV05889

[TENTATIVE] ORDER SUSTAINING DEMURRER
AND DENYING MOTION TO STRIKE AS MOOT

Dept. 506

8:30 a.m.

JULY 21, 2026

On February 24, 2026,
Plaintiff Lewis Brians filed a complaint against Defendants The Estate of Frank
Anthony Sinatra, Deceased (the "Estate") and Sean Umina as Trustee of the Frank
Sinatra Living Trust (the "Trustee")(collectively "Defendants" alleging (1) breach
of an oral agreement; (2) failure to pay minimum wage; (3) failure to pay
overtime wages; (4) failure to keep proper payroll records or to classify
employee accurately; (5) waiting time penalties; (6) quantum meruit.

On
May 6, 2026, Defendants filed the instant demurrer and motion to strike. On July 8, 2026, Plaintiff filed oppositions
to the demurrer and motion to strike. On
July 13, 2026, Defendants filed replies to the oppositions.

DISCUSSION

A
demurrer for sufficiency tests whether the complaint states a cause of
action. (Hahn v. Mirda (2007) 147

Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) "Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice." (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)

A demurrer based on an affirmative defense "cannot be properly sustained where the action might be barred by the defense but is not necessarily barred." (CrossTalk Productions, Inc. v. Jacobson (1998) 65 Cal.App.4th 631, 635.) Demurrer based on statute of limitations can only be sustained where the dates on the face of the complaint clearly and affirmatively establish that the action is time-barred. (Roman v. County of Los Angeles (2000) 85 Cal.App.4th 316, 324-325 ("If the dates establishing the running of the statute of limitations do not clearly appear in the complaint, there is no ground for general demurrer"); ("demurrer based on an affirmative defense cannot properly be sustained where the action might be barred by the defense, but is not necessarily barred.")

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code of Civ. Proc., §436.)

Pursuant to Code of Civil Procedure section 436, the Court may strike out "any irrelevant, false, or improper matter inserted in any pleading" and/or "all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code of Civ. Proc., §436.) In ruling on a motion to strike, the allegations in the complaint are considered in context and presumed to be true: "[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (Clauson v. Sup.Ct. (Pedus Services, Inc.)(1998) 67 Cal.App.4th 1253, 1255.)

A.
Plaintiff's First Cause of Action for

Breach of Oral Contract is Not Necessarily Barred by the Statute of Frauds

Where

the complaint seeks to enforce an agreement required to be in writing under the statute of frauds, but nonetheless alleges the agreement was oral, a general demurrer lies. The complaint on its face discloses a bar to recovery. (Rossberg v. Bank of America, N.A. (2013) 219 Cal.App.4th 1481, 1503; Parker v. Solomon (1959) 171 Cal.App.2d 125, 136.)

“The

following contracts are invalid, unless they, or some note or memorandum thereof, are in writing and subscribed by the party to be charged or by the party's agent:...(5) An agreement that by its terms is not be performed during the lifetime of the promisor.” (Civ. Code, §1624, subd. (a)(5).)

“A

mere possibility that a contract will not be performed within the lifetime of the promisor is insufficient” to support application of Civil Code section 1624 subdivision (a)(5). (Spears v. Spears (2023) 97 Cal.App.5th 1294, 1298, 1307 (decedent's oral promises to repay his debts to his son in periodic payments were not subject to statute of frauds merely because decedent stated that “if he died before paying off the debt, the debt would become due and payable in full”; plaintiff did not allege that decedent was prohibited from repaying debt before his death or that agreements otherwise foreclosed possibility that decedent could have fully performed during his lifetime.) “If the terms of a contract are such that it admits of performance during the lifetime of the promisor, it is not within the statutory provision here involved.” (Roy v. Salisbury (1942) 21 Cal.2d 176, 182 (contract that required plaintiff to care for decedent's dog if he “ever became unable to care for said dog, or if he should die” was not subject to statute of frauds because contract could be performed within lifetime of decedent; if decedent had become unable to care for the dog during his lifetime and dog could have potentially died before decedent died thereby completing performance within the decedent's lifetime).)

In

Hagan v. McNary (1915) 170 Cal. 141, the Supreme Court applied Civil Code section 1624 subdivision (a)(5) to an agreement that required the plaintiff to provide a “regular, permanent, and established home” “for and during the

term of his [decedent's] natural life."

(Hagan, *supra*, 170 Cal. at 142-143.) "The agreement, as alleged and proven, states no time for the payment of the \$7,000 which Kupper agreed to pay to plaintiff for the services to be rendered. The services consisted of furnishing Kupper a regular, permanent, and established home during the term of his natural life. This, of course, includes his whole life, and the service was not and could not be completed so long as breath remained in his body. The plaintiff's part of the agreement became completely executed upon his death, and not until then." (Hagan, *supra*, 170 Cal. at 143.) Because the parties' agreement did not specify a time for payment, "the obligation to pay does not become matured, and payment is not due until the services are completely performed. Complete performance of the service did not take place until the moment of [decedent's] death. No obligation for immediate payment arose, therefore, until the moment after; that is, after the death of [decedent]." (Id. at 143.)

In

Parker v. Solomon (1959) 171 Cal.App.2d 125, plaintiff agreed not to press her claims as decedent's unknown child, not to move to Los Angeles where decedent was residing and to stay out of decedent's life in exchange for decedent's promise that he would transfer half of his estate to her either during his lifetime or at his death. (Parker, *supra*, 171 Cal.App.2d at 129.) The court found the agreement was subject to the statute of frauds, affirming the trial court's order sustaining demurrer without leave to amend. The court explained, "[i]t is clear that the agreement pleaded could not have been fully performed on plaintiff's part prior to her father's death, since her promise was to refrain from asserting any claim against him 'and to remain out of his life'. And it is equally clear that the amount which plaintiff claims under the agreement (one-half the value of his estate) could not be ascertained until after his death." (Id. at 131.)

According

to Plaintiff, prior to August 1, 2023, he worked part time for Frank Sinatra ("Sinatra") as a personal attendant or health care worker who was not live in. (Complaint, ¶15.) From August 2022 to August 1, 2023, Sinatra paid Plaintiff a rate of \$25 per hour and he paid by personal check. (Id.)

After

August 1, 2023, Plaintiff moved into Sinatra's house to serve as a round-the-clock, daily caretaker. (Id.) Shortly after moving in, Sinatra announced he

would no longer pay Brian in cash but would be opening up a certificate of deposit ("CD") or other similar financial instrument. (Id. at ¶6.) Plaintiff took this to mean that his wages would be deposited into the CD that would mature later, and he did not wish to dispute it at the time when he just moved in.

(Id.) Sinatra extracted a promise from Plaintiff that he would stay with him "till the end," which Plaintiff did until February 2026, when Sinatra died. (Id.)

Plaintiff

alleges he attempted to discuss when and how much he would be paid, but Sinatra would only become agitated and shout that he would be left to die alone. (Id. at ¶8.) Sinatra offered to make a couple of payments to Brian of \$5,000 to catch up with back wages.

(Id.) Plaintiff indicated that would not be enough and Sinatra responded, "then you'll have to get it after I'm gone." (Id.) Sinatra died in February 2026 without making any payment of \$5000 or any wages at all to Plaintiff. (Id.)

Plaintiff

alleges Sinatra funded a CD as promised but only deposited \$15,000. (Id. at ¶6.) Plaintiff alleges in the complaint filed on February 24, 2026 that the CD does not mature for several more months. (Id.)

In

Plaintiff's first cause of action, Plaintiff alleges Sinatra and Plaintiff entered into an oral agreement whereby "Brians would care for Sinatra 'till the end' and in his own house, so he would not die alone, and Brians stated that he would." (Id. at ¶10.) Plaintiff alleges that "in consideration of Brians' work, Sinatra would pay Brians an amount to be calculated in the future, or that Brians would be compensated out of Sinatra's estate when Sinatra was gone." (Id.)

Based

on Plaintiff's allegations, the statute of frauds does not necessarily bar his oral contract claim. Plaintiff fails to allege any obligation of Sinatra's that could not have been performed within his lifetime. Plaintiff does not allege that parties arrived at any agreement regarding when Sinatra's was obligated to pay Plaintiff, and Sinatra only mentioned the possibility that Plaintiff would have to be paid out of the estate. Unlike the decedent in Parker, Sinatra did not agree to give Plaintiff a

portion of his “estate” in compensation for his services. “Estate” necessarily refers to a person’s assets after death and payment of half of that could only be determined after death. (Parker, supra, 171 Cal.App.2d at 131.)

The mere possibility that Sinatra would satisfy his payment obligations after death is insufficient to establish that the statute of frauds applies to the parties’ agreement. Unlike the decedent in Parker, Sinatra did not agree to give Plaintiff a portion of his “estate” in compensation for his services. “Estate” necessarily refers to a person’s assets after death and payment of half of that could only be determined after death. (Parker, supra, 171 Cal.App.2d at 131.) Under the oral agreement alleged, Sinatra could have fulfilled his obligations by paying Plaintiff prior to his death, as services were rendered. Like the decedent in Spears, Plaintiff has not alleged an agreement with Sinatra prohibiting him from paying Plaintiff before his death or that “otherwise foreclosed the possibility that decedent could have fully performed during his lifetime.” (Spears, supra, 97 Cal.App.5th at 1207.)

For the same reasons, Plaintiff’s alleged oral contract is distinguishable from that alleged in Smith v. Bliss (1941) 44 Cal.App.2d 171. In Smith, the promisor made a verbal promise to pay plaintiff for employment as a companion and caretaker for promisor’s lifetime. (Smith, supra, 44 Cal.App.2d at 173-174.) In compensation for plaintiff’s employment as a lifetime companion and caretaker, the promisor promised to pay plaintiff the same amounts she paid to a third party, who was also promisor’s friend and companion. (Id. at 174.) The court found plaintiff alleged an agreement that could not be performed within the promisor’s lifetime, because “the amount of compensation depended on the amount of the accounts in favor of Irene Martin,” and “[u]ntil the date of Mrs. Coffin’s death that amount could not be known.” (Id.) Here, Plaintiff’s fails clearly allege agreed upon compensation in any amount, much less compensation tied to any measure that could only be determined upon Sinatra’s death.

Plaintiff’s alleged oral agreement is also factually distinguishable from Hagan. Unlike the plaintiff in Hagan,

Plaintiff does not allege that Sinatra agreed to pay him a lump sum. Plaintiff “assumed” the parties’ agreed upon hourly wage of \$25 per hour applied but he fails to allege mutual consent to any specific payment terms. Plaintiff’s allegation that Sinatra “offered” to pay \$5,000 does not allege an agreement but merely an offer. (Complaint, ¶8.) Hagan stated the rule that, where a time for payment is not specified, “the obligation to pay does not become matured, and payment is not due until the services are completely performed.” (Hagan, *supra*, 170 Cal. at 143.) Sinatra’s promise to pay the wages into a CD also did not necessarily foreclose his performance prior to death. Plaintiff does not allege any agreement as to a specific type of CD, e.g. fixed rate, 1-year, 5-year.

The

alleged oral agreement included terms that would clearly be barred by Civil Code section 1624 subdivision (a)(5). Plaintiff alleges Sinatra agreed as part of the parties’ oral employment agreement that Plaintiff “could continue to live in the house for six months, rent-free, after Sinatra’s death, and mentioned this agreement to third parties before his death.” (Complaint, ¶12.) Sinatra was foreclosed from fulfilling this promise within his lifetime because the agreement specifically allowed for Plaintiff to reside at Sinatra’s home for six months “after Sinatra’s death.” However, Sinatra’s promise to allow Defendant to reside at his home after his death would not be grounds to sustain demurrer to the entire first cause of action. “If a claimant alleges two or more promises of performance ‘that can easily be distinguished and separated by the court by reference to the agreement itself’ (2 Corbin on Contracts, s 133, at pp. 127—128), only that promise of performance which falls clearly within the statute of frauds cannot be enforced.” (White Lighting Co. v. Wolfson (1968) 68 Cal.2d 336, 345.)

Defendants

fail to establish that Plaintiff’s alleged oral employment contract is “necessarily barred” by the statute of frauds set forth in Civil Code section 1624 subdivision (a)(5) based on the complaint allegations. (CrossTalk Productions, Inc., *supra*, 65 Cal.App.4th at 635.) At best, Defendants establish that Plaintiff’s alleged oral agreement “might be barred” by the statute of frauds. Defendants’ demurrer based on statute of frauds is overruled.

B.

The First Cause of Action for Breach of
Contract does not Implicate Probate Code Section 21700

“A

contract to make a will or devise or other instrument, or not to revoke a will or devise or other instrument, or to die intestate, if made after the effective date of this statute, can be established only by one of the following: (1) provisions of a will or other instrument stating the material provisions of the contract. (2) An express reference in a will or other instrument to a contract and extrinsic evidence proving the terms of the contract. (3) A writing signed by the decedent evidencing the contract. (4)

Clear and convincing evidence of an agreement between the decedent and the claimant or a promise by the decedent to the claimant that is enforceable in equity. (5) Clear and convincing evidence of an agreement between the decedent and another person for the benefit of the claimant or a promise by the decedent and another person for the benefit of the claimant or a promise by the decedent to another person for the benefit of the claimant that is enforceable in equity.” (Prob. Code, §21700, subd. (a).)

Defendants argue Plaintiff’s complaint “implicates”

Probate Code section 21700 subdivision (a) based on Sinatra’s alleged statement that Plaintiff would have to obtain payment from his estate if his offer to make two payments of \$5,000 was unacceptable.

Sinatra’s statements in response to Plaintiff’s rejection of the \$5,000 offer does not transform the underlying agreement into a “contract to make a will or devise or other instrument.”

Defendants’ demurrer to the first cause of action based on Probate Code section 21700 subdivision (a) is overruled.

C.

The First Cause of Action for Breach of
Contract Fails to Allege a Sufficiently Definite Oral Employment Agreement

Under

California law the basic requirements for an enforceable contract are (1) parties capable of contracting, (2) the consent of those parties, (3) a lawful object, and (4) adequate consideration. (Civ. Code, § 1550.) “The consent of the parties to a contract must be free, mutual, and communicated by each to the other. The absence of mutual consent, i.e., the failure to reach a meeting of the minds on all material points, prevents the formation of a contract...Where a contract is so uncertain and indefinite that

the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable. Although the terms of a contract need not be stated in the minutest detail, it must evidence a meeting of the minds upon the essential features of the agreement. Whether a term is material or essential depends on its relative importance to the parties and whether its absence would make enforcing the remainder of the contract unfair to either party.” (Santana v. Studebaker Health Care Center, LLC (2026) 120 Cal.App.5th 1, 11–12.)

“Under California law, a contract will be enforced if it is sufficiently definite (and this is a question of law) for the court to ascertain the parties’ obligations and to determine whether those obligations have been performed or breached. To be enforceable, a promise must be definite enough that a court can determine the scope of the duty, and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages. Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable. The terms of a contract are reasonably certain if they provide a basis for determining the existence of a breach and for giving an appropriate remedy. But if a supposed ‘contract’ does not provide a basis for determining what obligations the parties have agreed to, and hence does not make possible a determination of whether those agreed obligations have been breached, there is no contract.” (Bustamante v. Intuit, Inc. (2006) 141 Cal.App.4th 199, 209.)

“A ‘material term’ is defined as a ‘contractual provision dealing with a significant issue such as subject matter, price, payment, quantity, quality, duration, or the work to be done.’” (Westlands Water Dist. v. All Persons Interested (2023) 95 Cal.App.5th 98, 127 (quoting Black’s Law Dict. (11th ed. 2019), p. 1170, col. 2)(emphasis in the original).) Thus, the failure to include an amount of repayment in a draft agreement to convert the parties’ water service contract into a repayment contract rendered the draft agreement too indefinite to be an enforceable agreement. (Id. at 127-129.) The amount of repayment was an essential and material term based on the statute governing such conversion agreements and the parties’ own testimony. (Id.) The draft

agreement's inclusion of the formula according to which repayment amount would be calculated did not resolve the uncertainty of the agreement, because the draft did not include an exhibit with information necessary to apply the formula. (Id. at 129.)

Here,

Plaintiff alleges that the parties were operating under a part-time employment agreement whereby Sinatra would pay Plaintiff \$25 per hour and Plaintiff was not a live-in employee. (Complaint, ¶6.) Once Plaintiff agreed to become a live-in employee, Sinatra changed the method of payment—deposit into an unspecified CD rather than cash payment—but made no mention of the hourly wage. (Id.)

Apart from Plaintiff's live-in status, Plaintiff's "round the clock" schedule and the method of payment, Plaintiff does not allege re-negotiation of any other term of the parties' initial employment agreement. On that basis, Plaintiff "assumed" he would be compensated at the same rate going forward.

(Complaint, ¶11.)

Plaintiff

alleges multiple other new terms of the parties' oral agreement as a result of Plaintiff's live-in status. Plaintiff

alleges Sinatra allowed Plaintiff to live in his home, "rent free," with all utilities, groceries and other household items paid for by Sinatra. (Id. at ¶12.) Plaintiff alleges Sinatra also agreed to allow Plaintiff to live in the house rent-free for six months after Sinatra's death. (Id. at ¶12.)

Defendants

argue the alleged employment agreement fails because the parties never agreed on the amount of compensation.

Defendants argue parties never mutually agreed upon a payment term for Plaintiff's live-in employment.

Defendants argue Plaintiff alleges the cessation of the existing \$25/hr part-time employment agreement and the failure to replace that agreement's payment terms.

In

opposition, Plaintiff argues he is entitled to plead in the alternative. Plaintiff argues he alleges "he was paid \$25 per hour, paid by Sinatra's personal check, at the beginning, however, Sinatra apparently had a different idea about how much to pay him after Plaintiff had already moved all belongings into Sinatra's house." (Opposition, 7:1-4.) Plaintiff argues this does not render the agreement uncertain or unenforceable, because the payment terms can be supplied

by the State and County's minimum wage.

Plaintiff

fails to allege a sufficiently definite oral employment agreement. Plaintiff fails to allege mutual agreement on an essential term of the employment agreement, the rate or amount of compensation. Plaintiff alleges that he "assumed" \$25/hr would continue to be his rate of payment for live-in services. Plaintiff's assumption does not establish mutual agreement, nor are there any factual allegations indicating that Sinatra agreed to \$25/hr for Plaintiff's live-in services. The amount of compensation was never agreed upon and the factual allegations indicate that was a material term of Plaintiff and Sinatra. Plaintiff does not claim the amount of compensation was merely an incidental or minor matter. Without an agreed upon amount of compensation, it is impossible to determine whether Sinatra breached his obligations to Plaintiff. A specific amount of compensation, such as an hourly wage or a lump sum, is particularly crucial given the existence of other substantial forms of compensation that did not exist before the parties' live-in arrangement, including free room, board and utilities.

Plaintiff's

opposition also fails to establish that he can cure the defect. Plaintiff's arguments that the Court can read-in an hourly rate based on minimum wage or other evidence would be pertinent to a quantum meruit claim. The Court cannot cure the parties' failure to mutually consent to a material contract term by unilaterally imposing a term on the parties. At that point, the Court would be exercising its equitable power to provide an equitable remedy, which would be quantum meruit.

Defendants'

demurrer to the first cause of action for breach of contract based on failure to plead a sufficiently definite, enforceable oral agreement is sustained without leave to amend.

D.

The Second and Third Causes of Action For Failure to Pay Minimum Wage and Failure to Pay Overtime are Sufficiently Stated and Not Uncertain

Defendants

demur to the second and third causes of action for failure to pay minimum wage and failure to pay overtime on grounds.

Defendants ask that the Court disregard paragraphs 18 and 19 of the second cause of action, because they contain unsupported legal conclusions. Defendants argue that without these allegations based on an inapplicable wage order, Plaintiff's allegations of failure to pay minimum wage and failure to pay overtime are conclusory.

Plaintiff's

allegations at paragraphs 18 and 19 are not subject to being stricken merely because they contain legal conclusions or allegations regarding California law. Even if the Court were to disregard paragraphs 18 and 19, Plaintiff's allegation that Sinatra failed to pay him minimum wage and overtime under California law is an allegation of fact that must be accepted as true on demurrer. Plaintiff alleges he worked seven days a week for more than 9 hours a day, triggering the overtime rates. (Complaint, ¶22.) This is also a factual allegation that must be accepted as true. The Second and Third causes of action are not so poorly drafted that Defendants cannot reasonably respond. To the extent

Defendants believe Plaintiff did not satisfy the requirements for overtime, Defendants are disputing the truth of the factual allegations, not their sufficiency.

Defendants'

Demurrer on grounds that the second and third causes of action fail to allege the elements of a failure to pay minimum wage claim and a failure to pay overtime claim is overruled.

E.

The Fourth Cause of Action is Uncertain and Fails to State a Cause of Action

Plaintiff's

fourth cause of action is for "Failure to Keep Proper Payroll Records or to Classify Plaintiff Accurately as a Household Employee." Plaintiff's fourth cause of action fails to allege any facts supporting a duty to "keep proper payroll records" or to "classify Plaintiff accurately as a Household Employee." As Defendants argue in opposition, this renders the fourth cause of action uncertain.

To the extent Plaintiff is seeking to assert a cause of action under the Labor Code, Plaintiff must allege the specific code section in order for Defendants to be able to reasonably respond.

Defendants'

demurrer to the fourth cause of action for "Failure to Keep Proper Payroll Records or to Classify Plaintiff Accurately as a Household Employee" is sustained with 30 days leave to amend on grounds of uncertainty.

F.

The Fifth Cause of Action for Waiting Time Penalties is Sufficiently Alleged

Defendants

demur to the fifth cause of action on grounds that it relies on an alleged personal, oral, post death arrangement with Sinatra and causes of action that are insufficiently alleged. Plaintiff alleges entitlement to waiting time penalties due to Defendants' failure to pay minimum wage, overtime or any wages at all to him. Plaintiff relies on Labor Code section 203 to calculate the penalties on his claim for unpaid minimum wage and overtime. The second and third causes of action for failure to pay minimum wage and overtime are sufficiently alleged. The derivative claim for waiting time penalties is also sufficiently alleged.

Defendants'

demurrer to the fifth cause of action for failure allege the elements of a waiting time penalties claim is overruled.

G.

The Sixth Cause of Action for Quantum Meruit is Sufficiently Alleged

"Quantum

meruit refers to the well-established principle that the law implies a promise to pay for services performed under circumstances disclosing that they were not gratuitously rendered. To recover in quantum meruit, a party need not prove the existence of a contract, but it must show the circumstances were such that the services were rendered under some understanding or expectation of both parties that compensation therefor was to be made."

(Chodos v. Borman (2014) 227 Cal.App.4th 76, 96, citations and quotation marks omitted.) "[I]n order to recover under a quantum meruit theory, a plaintiff must establish both that he or she was acting pursuant to either an express or implied request for such services from the defendant and that the services rendered were intended to and did benefit the defendant." (Day v.

Alta Bates Medical Center (2002) 98 Cal.App.4th 243, 248.)

Defendants

argue the sixth cause of action relies on the oral, post-death arrangement alleged in the first cause of action for breach of contract and must fail for that reason. Plaintiff's sixth cause of action does not rely on the contract alleged in the first cause of action. Plaintiff's sixth cause of action is based on Sinatra's request that Plaintiff serve as his live-in caretaker until his death, which services Plaintiff rendered and which benefitted Sinatra. (Complaint, ¶¶ 5, 33, 34.) Plaintiff sufficiently alleges an equitable, quantum meruit claim arising from the parties' agreement, which was insufficiently specific to be enforced as a contract. (Parker, supra, 171 Cal.App.2d at 134 (plaintiff's remedy was in quantum meruit for services rendered pursuant to agreement that was barred by statute of frauds).)

Defendants'

demurrer to the sixth cause of action for quantum meruit based on failure to allege the elements of a quantum meruit claim is overruled.

H.

Plaintiff Fails to Allege Grounds to

Assert Any of His Claims against Defendants for Sinatra's Failure to Pay for Plaintiff's Services

Defendants

demur to the entire complaint on grounds that Plaintiff fails to allege any facts making them liable for services rendered to Sinatra pursuant to Sinatra's request. Defendants also argue Plaintiff improperly makes allegations as to "all Defendants," which is improper given that each Defendant stands in a different position relative to Plaintiff and Sinatra.

In

response, Plaintiff relies on Code of Civil Procedure section 377.40 to establish the Estate's liability for Sinatra's obligations to him. "Subject to Part 4 (commencing with Section 9000) of Division 7 of the Probate Code governing creditor claims, a cause of action against a decedent that survives may be asserted against the decedent's personal representative or, to the extent provided by statute, against the decedent's successor in interest." (Code of Civ. Proc., §377.40.) Plaintiff does

not name Sinatra's personal representative or successor-in-interest. Plaintiff's naming of "The Estate of Frank Anthony Sinatra, Deceased" is therefore improper under Code of Civil Procedure section 377.40 and insufficient to state a cause of action against decedent that survives his death. Plaintiff also does not allege that the Trust is Sinatra's successor-in-interest, nor does he claim that he can do so. Plaintiff states in opposition that he has initiated a probate proceeding but this does not cure the failure to name a personal representative in the original complaint.

Plaintiff

also concedes that the Trust is, at best, a possible source from which to satisfy Sinatra's obligations to him if the probate estate is inadequate. (Objection to Demurrer, 13:5-8.) Plaintiff relies on Probate Code section 19400, which provides "Subject to Section 366.2 of the Code of Civil Procedure, if there is no proceeding to administer the probate estate of the deceased settlor, and if the trustee does not file a proposed notice to creditors pursuant to Section 19003 and does not publish notice to creditors pursuant to Chapter 3 (commencing with Section 19040), then a beneficiary of the trust to whom payment, delivery, or transfer of the deceased settlor's property is made pursuant to the terms of the trust is personally liable, to the extent provided in Section 19402, for the unsecured claims of the creditors of the deceased settlor's probate estate." As Plaintiff states in his opposition, he has initiated probate and there is a probate proceeding pending at this time.

Plaintiff

fails to allege facts that would make the Trust liable for the Sinatra's debt to Plaintiff. Plaintiff also fails to allege that the Trust is the successor-in-interest of Sinatra, nor does he name Sinatra's personal representative pursuant to Code of Civil Procedure section 377.40. Plaintiff also concedes that he has initiated a probate proceeding to administer Sinatra's estate. Where a probate estate is opened after a decedent's death, "a creditor of the deceased must first file a claim in the probate proceeding in order to recover." (Spears, supra, 97 Cal.App.5th at 1302.) Plaintiff does not maintain that he can name the Trust as successor-in-interest given the current circumstances.

Defendants'

demurrer based on failure to allege facts establishing Defendants' liability

for Sinatra's obligations is SUSTAINED without leave to amend as to Defendant Trust, SUSTAINED WITH 30 DAYS LEAVE TO AMEND as to the Estate on the Second, Third, Fourth, Fifth and Sixth Causes of Action and SUSTAINED WITHOUT LEAVE TO AMEND as to the First Cause of Action as to the Estate.

CONCLUSION

Defendants'

demurrer is SUSTAINED without leave to amend as to Defendant Trust, SUSTAINED WITH 30 DAYS LEAVE TO AMEND as to the Estate on the Second, Third, Fourth, Fifth and Sixth Causes of Action and SUSTAINED WITHOUT LEAVE TO AMEND as to the First Cause of Action as to the Estate.

Defendants' Motion to Strike is MOOT in light of the ruling on demurrer.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 21st day of July
2026

Hon. Thomas D.

Long

Judge of the Superior
Court